

		Therefore, the Court ORDERS Reprise to provide further supplemental response to No. 32 and produce further documents within 15 days. (Code Civ. Proc., § 2031.310(a).) Plaintiff's request for monetary sanctions against Reprise is GRANTED in the amount of \$2,000.00. (Code Civ. Proc., § 2031.310(h).) Plaintiff's request for monetary sanctions against Abboud is DENIED, as the Court finds that Abboud's delay in providing supplemental responses until after a ruling on the motion for relief from waiver of objections was issued was substantially justified. <i>Plaintiff to give notice.</i>
105	Rodriguez vs. BP America, Inc 22-01292742	Defendants, BP America, Inc. and Ali Afghani ("Defendants"), move for an order compelling Plaintiff, Jesus Hiram Rodriguez, to provide further responses to Form Interrogatories, Set One; Special Interrogatories, Set One; and Request for Production of Documents, Set One. The notice of motion does not identify the discovery at issue by number. "A motion concerning interrogatories, inspection demands, or admission requests must identify the interrogatories, demands, or requests by set and number." (California Rules of Court, rule 3.1345(d).) However, Defendants have filed the requisite separate statement which indicates the discovery at issue is as follows: Form Interrogatories, Set One. Nos. 8.1, 8.2, 8.3, 8.4, 8.5, 8.6, 8.7, and 8.8; Special Interrogatories, Set One, Nos. 8, 9, 11, 26, and 29, and 32; and Request for Production of Documents, Nos. 2, 4, 5, 23, 24, 25, 26, 28, 29, 30, and 31. <i>Timeliness</i> With respect to the timing requirement, Code of Civil Procedure section 2030.300, subdivision (c), specifically provides: "Unless notice of this motion is given within 45 days of the service of the verified response, or any supplemental verified response, or on or before any specific later date to which the propounding party and the responding party have agreed in writing, the propounding party waives any right to compel a further response

	to the interrogatories.” The 45-day time limit is extended for service by mail, overnight delivery, or fax, or electronic mail in accordance with Code of Civil Procedure sections 1010.6(a)(3), 1013. A motion to compel further responses for requests for production has the same requirement but is governed by Code of Civil Procedure section 2031.310(c). The 45-day deadline to bring a motion to compel further responses is mandatory and jurisdictional. (<i>Vidal Sassoon, Inc. v. Superior Court</i> (1983) 147 Cal.App.3d 681, 685 [the court acts in excess of its jurisdiction by considering an untimely motion to compel further response to interrogatories]; <i>Sexton v. Superior Court</i> (1997) 58 Cal.App.4th 1403, 1406-1410 [applying rule to motions to compel production of documents].) The deadline is jurisdictional insofar as it renders the court without authority to rule on motions to compel other than to deny them. (<i>Sexton v. Superior Court</i> (1997) 58 Cal.App.4th 1403, 1410.) Code of Civil Procedure section 2024.060 states: “Parties to an action may, with the consent of any party affected by it, enter into an agreement to extend the time for the completion of discovery proceedings or for the hearing of motions concerning discovery, or to reopen discovery after a new date for trial of the action has been set. This agreement may be informal, but it shall be confirmed in a writing that specifies the extended date. In no event shall this agreement require a court to grant a continuance or postponement of the trial of the action.” Defendants submit evidence which provides as follows. Defendants’ counsel received Plaintiff’s responses to the discovery on October 23, 2023, suggesting the discovery responses were served on or about October 23, 2023. (Declaration of Scott H. Heitmann, ¶4.) Defendants sent Plaintiff’s counsel a meet and confer letter dated November 21, 2023. (<i>Id.</i>, ¶ 5, Ex. A.) On November 21, 2023, Plaintiff’s counsel requested a 30-day extension to respond, and stated, “We will also agree to an extension to file your motion to compel further, after receipt of our supplemental
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		responses.” (Id., ¶ 6, Ex. B.) Defendants next served a meet and confer letter regarding the outstanding supplemental responses on September 11, 2024, and September 18, 2024, but received no supplemental responses as of October 24, 2024. (Id., ¶¶ 7-9, Exs. C and D.) The instant motion was filed on October 24, 2024, nearly a year after Defendants’ received Plaintiff’s responses on October 23, 2023. The foregoing evidence indicates that Plaintiff requested a 30-day extension to respond, and agreed to an extension for Defendants to file a motion to compel after receipt of the supplemental responses, but Defendants provide no evidence showing that Defendants granted Plaintiffs’ request. As a result, Defendants do not show an agreement in writing to extend the deadline to file any motion to compel further responses, let alone to a “specific later date.” In addition, while Defendants’ counsel provides that Plaintiff “agreed to an open extension for Defendants to file their motion to compel further responses, after receipt of Plaintiff’s supplemental responses,” Code of Civil Procedure sections 2030.300(c) and 2031.310(c) provides for an extension to file a motion to compel “on or before any specific later date.” An open extension after receipt of Plaintiff’s supplemental responses does not constitute a “specific later date.” Based on the foregoing, Defendants fail to show that the instant motions to compel were timely. Thus, the motions are DENIED in their entirety. <i>Defendants to give notice.</i>
106	Moreno vs. James R. Glidewell, Dental Ceramics, Inc. 24-01380333	<i>Off-calendar.</i>
107	BRHE Group vs. Bates 24-01379502	Defendants Davide Bates CPA/AVA and Jeffrey Reiss CPA/MST move for an order deeming Bates and Reiss to be the prevailing parties as to the now-dismissed first and second causes of action in Plaintiff’s Complaint and for an award of attorney fees and costs.